

**MID-TERM EXAMINATION**  
**2<sup>ND</sup> SEMESTER, SCHOOL YEAR 2018-2019**  
**ADMINISTRATIVE LAW (PAC-008)**  
**BACHELOR IN PUBLIC ADMINISTRATION**

**INSTRUCTION**

This questionnaire consists of TWO (2) PARTS. PART I is a Multiple Choice Questions (MCQ's) numbered 1 up to 35, and identification type examination numbered 1 to 30. PART II is essay and objective type question consist of II Roman Numerals with sub-question. Answer first the MCQ's before going to essay-type questions. These sets of examination contained in Six (6) pages

HAND IN YOUR BLUE BOOK WITH THIS QUESTIONNAIRE

GOOD LUCK!! 😊

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Prof. JOEL R. NOOL  
Faculty-in-Charge

PLEASE CHECK THAT THIS QUESTIONNAIRE CONTAINS SEVEN (7) PAGES (INCLUDING THIS PAGE)

**PART I**  
**MULTIPLE CHOICE QUESTIONS (MCQ's)**

**INSTRUCTION:** read each statement carefully and complete the correct thought of each statement by writing the CAPITAL LETTER you have chosen on your answer sheet (Blue Book). Avoid erasures. If you need to make correction, erase completely the answer you want to change.

1. The law provides that an administrative complaint must be verified and filed with the proper government office. Will failure to conform with this requirement cause the dismissal of the complaint?
  - A. Yes, because it is not only a formal but a jurisdictional requirement.
  - B. Yes, because this will determine the truthfulness and genuineness of the allegations of the complaint.
  - C. No, because the lack of the verification is not fatal since it is only formal defect
  - D. No, because technical rules of procedure are not applicable in Administrative Cases.
2. Where shall an administrative complaint against Vice Governor be filed?
  - A. The office of the Governor
  - B. The office of the President of the Republic
  - C. The office of the Secretary, DILG
  - D. The Civil Service Commission
3. Which of the following is not a doctrine in Administrative Law?
  - A. Doctrine of Qualified Political Agency;
  - B. Doctrine of Exhaustion of Administrative Remedies;
  - C. Doctrine of Defendant Relevant Revocation;
  - D. Doctrine of Necessary Implication.
4. Right to be heard as a requirement of due process means that without having been heard, a party is denied due process.
  - A. True
  - B. False, because it is enough that he is given chance to be heard;
  - C. False, because hearing refers to literal meaning only;
  - D. False, because it is meaningless without actual presentation of his side.
5. Where should SSS workers bring their labor grievances?
  - A. Public Sector Labor Management Council
  - B. National Labor Relation Commission
  - C. National Conciliation, and Mediation Board
  - D. Civil Service Commission
6. A determination or decision of an administrative agency can normally be enforced only pursuant to the provision of a statute. In the absence of such statutory provision-
  - A. the agency will simply petition the court to issue writ of execution
  - B. it is implied that the agency can promulgate the rules for enforcing its order.
  - C. a party favored by the agency's order may file a case in court for recognition and enforcement
  - D. the order cannot be enforced and is merely advisory.
7. Ms. A, a government employee was charged for dishonesty. During the pendency of her case, she dies. What will happen to the administrative case against her?
  - A. It will be dismissed for being moot and academic.
  - B. It will be dismissed because no one will be held liable
  - C. It will continue to determine her civil liability
  - D. It will continue to determine if there was in fact dishonesty

8. State which administrative regulation need not be published.
- A. Interpretative regulation
  - B. Legislative regulation
  - C. Contingent regulation
  - D. Supplemental regulation
9. Which of the following has no original jurisdiction over administrative disciplinary cases involving public officers and employees?
- A. Chief of office or bureau
  - B. Ombudsman
  - C. Civil Service Commission
  - D. Local Chief executive
10. Congress in response to President A's statement passed a bill which became Republic Act (RA XXX) creating the office of the Anti-graft Commission placing it directly under the Department of Justice. The new law empowers the newly created office to investigate all alleged irregularities committed before the advent of President's A administration. The new law likewise gave the head of the office an open ended option in pursuing the mandate of the agency. How would you classify the nature of the function/power of the commission?
- A. Quasi-judicial and investigatory
  - B. Quasi-legislative
  - C. Investigatory and Recommendatory
  - D. Ministerial and Discretionary
11. **First Statement:** Those charged with the administration of government are known as judicial officers.  
**Second Statement:** Those charged with administration of justice are known as administrative officers.
- A. Only the first statement is correct.
  - B. Only the second statement is correct
  - C. Both statements are correct
  - D. Both statements are incorrect
12. A complaint for dishonesty was filed against employee A. Dishonesty constitutes a grave offense. To ensure due process of law, the resolution of the complaint against an employee A must be based on –
- A. Prima Facie evidence
  - B. Substantial evidence
  - C. Preponderance of evidence
  - D. Clear and convincing evidence
13. Where shall administrative complaint against municipal councilor be filed?
- A. The office of the President of the Republic
  - B. The office of the Mayor
  - C. The office of the Sangguniang Panlalawigan
  - D. The office of the Secretary, DILG
14. Administrative cases against appointed local government officials and employee is governed by:
- A. the local government code
  - B. DILG issuance & opinion
  - C. The code of conduct of Government Employees (RA 6713)
  - D. The administrative code of 1987 –
15. In all administrative proceedings, it is sufficient that all parties are notified of the hearing to comply with the due process requirement.
- A. No, due process requires both notice of the charges or complaint and opportunity to present evidence.
  - B. Yes, due process is premised on receipt of notice of hearing.
  - C. No, due process is not complete without proof of notice and hearing.
  - D. Yes, with notice of hearing, a party is allowed to choose his counsel.
16. Every decision in administrative case must be supported by facts, law and proof beyond reasonable doubt.
- A. Yes, because this will be the basis of liability of the party in administrative case
  - B. No, the quantum of proof required in an administrative case is only substantial evidence.
  - C. Yes, because this will give the aggrieved party a better chance to prevail in the event of the appeal.
  - D. No, because an administrative case is not governed by the Rules of Court.

17. When an administrative case is filed against an elected local official, formal investigation is required by law to be finished within: \_\_\_\_\_ from the time of formal notice to the respondent.
- A. Ninety (90) days
  - B. Sixty (60) days
  - C. forty-five (45) days
  - D. One hundred twenty (120)
18. Before resorts to courts are allowed, administrative action has to be completed so that nothing is left to be done in the administrative structure. This is the doctrine of –
- A. Exhaustion of Administrative Remedies
  - B. Primary Jurisdiction
  - C. Finality of Administrative Action
  - D. Finality of Judgment
19. An action of claims for damages does not require exhaustion of administrative remedies because –
- A. Public policy is involved.
  - B. There is violation of due process.
  - C. The issue raised involves a purely legal question.
  - D. The case involves the doctrine of qualified political agency.
20. Which of the following statements is not true in administrative law?
- A. It is a branch of Public Law
  - B. Administrative laws are also bound by technical Rules of Evidence
  - C. Administrative remedies should first be exhausted before filing a petition for relief (with certain) exemptions
  - D. Factual finding of administrative bodies are accorded not only respect but also finality as supported by substantial evidence
21. It is the actual running of the government by the executive authorities through the enforcement of laws and the implementation of policies
- A. Administration as an institution
  - B. Administration as a function
  - C. External administration
  - D. Internal administration
22. Permits the body to promulgate rules intended to carry the provisions of a particular laws.
- A. Power of Adjudication
  - B. Power of subordinate legislation
  - C. Quasi-judicial power
  - D. Quasi-Public corporation
23. The power of administrative authorities to make determinations of facts in the performance of their official duties and to apply the law as they construe it for the facts so found.
- A. Adjudicatory power
  - B. Investigatory power
  - C. Quasi-legislative power
  - D. Power of subordinate legislation
24. It involves the use by administrative authorities of force upon persons or things without the necessity of previous judicial warrant.
- A. Dispensing powers
  - B. Directing powers
  - C. Enabling power
  - D. Summary power
25. A regulation issued by administrative body as an incident of its power to enforce the law and is intended merely to clarify its provision for proper observance by the people.
- A. Contingent regulation
  - B. Interpretative regulation
  - C. Legislative regulation
  - D. Supplementary regulation
26. The following shall be published as a condition for their effectivity; except:
- A. Statutes, including local application and private laws
  - B. Executive Orders (EO's)
  - C. Letter of Instruction (LOI's)
  - D. Presidential Decrees (PD's)

27. Which of the following does not require publication?

- A. Administrative rules and regulation if their purpose is to enforce or implement existing laws
- B. Administrative regulation which is penal in nature.
- C. Circulars and regulations which prescribe penalties
- D. Interpretative regulations which are merely internal in nature.

28. **First Statement:** The fifteen-day period is counted from the date or printed date of the edition of the Official Gazette.

**Second Statement:** The fifteen-day period is counted from the date of release for circulation of the edition in the Official Gazette

- A. Only the first statement is correct.
- B. Only the second statement is correct
- C. Both statements are correct
- D. Both statements are incorrect

29. **First Statement:** Dispensing power is the power of administrative officer to grant exemption from the performance of a general duty.

**Second Statement:** Those powers that enable an administrative agency to do an act which the law precisely entrust to it are enabling power.

- A. Only the first statement is correct.
- B. Only the second statement is correct
- C. Both statement are correct
- D. Both statements are incorrect

30. The Commission on Human Rights has the power to –

- A. Adjudicate only
- B. Investigate only
- C. Prosecute only
- D. Both prosecutory and investigatory powers

31. Article III, Sec. 16 of the New Constitution provides that “all persons shall have the right to speedy disposition of their cases before all:

- A. Judicial bodies;
- B. Quasi-judicial bodies;
- C. Administrative bodies;
- D. All of the choices.

32. **First Statement:** in legislative function, the grant of prior notice and hearing to the affected parties is a requirement of due process.

**Second Statement:** As regards rates prescribed by administrative agency in the exercise of its quasi-judicial function prior notice and hearing are not essential.

- A. Only the first statement is correct.
- B. Only the second statement is correct
- C. Both statements are correct
- D. Both statements are incorrect

33. Which of the following requisites of administrative regulation is incorrect?

- A. The promulgation must be authorized by legislature
- B. It must be within the scope of the authority given by legislature
- C. It must be promulgated not in accordance with the prescribed procedure
- D. It must be reasonable

34. Do administrative agencies have the power to define and punish crime?

- A. Yes, when conferred by law.
- B. No, because only the executive grant such power.
- C. Yes, when granted by the judicial department
- D. No, they cannot prescribe such penalties as this power belong exclusively to legislative

35. The law, as passed and approved, said that it takes effect on November 25, 2018.

- A. The said law takes effect fifteen (15) days following the completion of its publication either in official gazette or in a Newspaper of general circulation in the Philippines.
- B. The said law takes effect after fifteen (15) days following the completion of their publication either in official gazette or in a Newspaper of general circulation in the Philippines.
- C. The said law takes effect upon its approval.
- D. The said law shall take effect on November 25, 2018.

## IDENTIFICATION

**DIRECTION:** identify the concept or idea that best name what is defined or described (30 points)

1. \_\_\_\_\_ It is an agency process for the formulation, amendment or repeal of a rule.
2. \_\_\_\_\_ these are intended only to implement the law and to carry out the legislative policy.
3. \_\_\_\_\_ refers to the aggregate of individuals in whose hands the reins of government are for the time being.
4. \_\_\_\_\_ the actual running of the government by the executive authorities through the enforcement of laws and the implementation of policies.
5. \_\_\_\_\_ It is an agency or instrumentality through which the will of state is formulated, expressed and realized.
6. \_\_\_\_\_ consists on requiring the production of books, papers, records and attendance of witnesses and compelling their testimony.
7. \_\_\_\_\_ these are duties or powers where no judgment or discretion is required or allowed in their exercise.
8. \_\_\_\_\_ the power which order the doing or performance of particular acts to ensure compliance with the law and are often exercised for corrective purposes.
9. \_\_\_\_\_ those power that permit the doing of an act which the law undertaken to regulate and which would be unlawful without government approval
10. \_\_\_\_\_ this power involves especially the interpretation or construction and enforcement of the law and the aggregation of the factual questions that may be submitted to it for resolution.
11. The power to define and punish crime which may not be delegated to the administrative authorities belongs exclusively to what of branch of government? \_\_\_\_\_.
12. \_\_\_\_\_ this power must be expressly granted to the administrative body; and when so granted, may be exercised only when administrative body actually performing quasi-judicial functions.
13. Where an administrative body is expressly granted the power of adjudication, it is deemed also vested with implied power to prescribe the rules to be observed in the conduct of its proceedings. This is justified under what doctrine?
14. \_\_\_\_\_ It is simply an agency process for the formulation of the final order
15. \_\_\_\_\_ such relevant evidence as a reasonable mind might accept as adequate to support a conclusion
16. The essence of due process as applied to administrative proceedings means an \_\_\_\_\_.
17. Due process is intended to insure that confidence by requiring compliance with what justice Frankfurter calls the rudiments of fair play. Fair play calls for what?
18. Due process entitles the litigants before administrative bodies (as well as courts) to the cold neutrality of \_\_\_\_\_.
19. What principle or rule which forbids the reopening of a matter once judicially determined by competent authority?
20. \_\_\_\_\_ simply defined as the competence of an officer or body to act on a given matter or determine a certain question, or the power of the court to hear and decide the case.
21. – 22. The power to hold in contempt, it has time and again been held, must be exercised, not on the \_\_\_\_\_, but on the \_\_\_\_\_ principle.
23. The right to notice and hearing is essential to due process and its non-observance or denial thereof will, as a rule, render the administrative proceeding \_\_\_\_\_.
24. Publication of laws must be in full or it is no publication at all. What is the purpose of publication?
25. \_\_\_\_\_ they are rules and regulations "to fix the details" in the execution and enforcement of a policy set out in the law.
26. \_\_\_\_\_ this activity or function of administration covers those rules defining the relations of public functionaries inter se and embraces the whole range of the Law of Public officers.
27. As a matter of policy, review of administrative adjudications as a last or final resort and usually only when question of law are involved belongs to \_\_\_\_\_
28. \_\_\_\_\_ It is the power of administrative authorities to make determinations of facts in the performance of their official duties and to apply the law, as they construe it to the facts so found. The exercise of this power is only incidental to their main function, which is the enforcement of law.

29. Ideally the law in all and its term and conditions must set forth therein the policy to be executed, carried out or implemented by the delegates. This test of delegation is known as what?
30. In case of conflict between statute and an administrative order, which prevail?

**\*END OF PART I\***

## **PART II**

### **ESSAY AND OBJECTIVE TYPE QUESTION**

**DIRECTIONS:** Answer the questions directly, concisely and sequentially. A mere Yes or No answer without corresponding discussion will not be given credit. Do not repeat the question. Write legibly

#### **I.**

Central Bank issued circular No. 20 requiring those who have foreign currency to sell the same to the Central Bank. Said circular prescribe a penalty for its violation. The accused Que, was charged and convicted for violating the provisions of circular No. 20 but Que claimed that said circular has not yet been published in the Official Gazette before his alleged violation of the same and therefore he should be acquitted.

1. May the accused Que be held liable for violation of Circular No.20? Decide let legal reason. (3 pts)
2. Should administrative rules and regulation be published? (3 pts)
3. What are the requisites of administrative regulation with a penal sanction? (3 pts)

#### **II.**

S obtained a passport and then left for the US after a verified complaint for seduction against him was filed in court. On motion of the private prosecutor, the court issued an order directing the National Bureau of Investigation and the Department of Foreign Affairs to take proper steps to bring back S so that he may be dealt with in accordance with law. The Secretary of Foreign Affairs order the cancellation of S passport.

1. Is the cancellation of the passport without notice and hearing a denial of S's right to due process? (5 pts)
2. What are the cardinal rights or principles to be observed in administrative proceedings as decided in the case of Ang Tibay v. Court of Industrial Relations (69 PHIL 635) (6 pts).

**\*\*\*NOTHING FOLLOWS\*\*\***

JRN '30